

Anwarul Haq v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 April 2011 · Writ-C No. 17382 of 2011 · **Writ disposed; petitioner directed to file appeal against the final assessment.**

HEADNOTE

After a Section 135 raid and a final assessment of Rs. 40,587 said to have been passed under Clauses 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005, the High Court declined to try on writ whether mixed use was made out or whether provisional notice had been served, and relegated the consumer to an appeal before the appropriate authority to be decided after a full hearing by a reasoned order.

FACTUAL SUMMARY

The petitioner challenged a final assessment of Rs. 40,587 after a raid in which the licensee alleged that his domestic connection was used for commercial purposes, including a tubewell motor, and registered an FIR under Section 135 of the Electricity Act, 2003. The licensee said it issued a provisional assessment under Clauses 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005, and confirmed Rs. 40,587 when no objection was filed. The petitioner denied mixed use and denied service of any provisional notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

appeal against final assessment

HOLDING

Once a final assessment has been passed after an alleged Section 135 raid, the consumer's grievance that no provisional assessment notice under Clauses 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005 was served, and the dispute over mixed domestic-commercial use, are to be raised in an appeal before the appropriate authority rather than in writ; that appeal is to be decided after a full hearing by a reasoned order. ¶ 2

FLAG order records assessment under Clauses 6.8 and 8.1 together; which procedure applied was not decided

PRINCIPLE TAGS

opportunity-before-final-assessment After a Section 135 raid and a final assessment of Rs. 40,587 said to have been passed under Clauses 6.8 and 8.1 of the U.P.. ¶ 2

s135-arrest-safeguards-and-compounding-remedy After a Section 135 raid and a final assessment of Rs. 40,587 said to have been passed under Clauses 6.8 and 8.1 of the U.P.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER USED A DOMESTIC CONNECTION FOR MIXED RESIDENTIAL AND COMMERCIAL PURPOSES

¶ 2

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT NOTICE UNDER CLAUSES 6.8 AND 8.1 WAS SERVED

¶ 2

NOT DECIDED — WHETHER THE ASSESSMENT IS GOVERNED BY CLAUSE 6.8 (UNAUTHORISED USE) OR CLAUSE 8.1 (THEFT)

¶ 2

